

JUSTIFICATION REVIEW DOCUMENT
FEDERAL ACQUISITION REGULATION (FAR) PART 6
JUSTIFICATION AND APPROVAL FOR OTHER THAN
FULL AND OPEN COMPETITION

Program/Equipment: General-Purpose Electronic Test Station (GETS)-1000 Program of US field maintenance and logistical support to maintain Phase-Array Tracking to Intercept of Target (PATRIOT) GETS-1000 Automatic Test Equipment (ATE) systems; ancillary equipment and associated test hardware; and software and test accessories in operational condition.

Authority: The statutory authority permitting other than full and open competition is 10 United States Code (U.S.C.) 3204(a)(1) as implemented by FAR 6.302-1(a)(2)(iii)(A) and (B) entitled "Only one responsible source and no other supplies or services will satisfy agency requirements."

Amount: [REDACTED]

Prepared By: [REDACTED] DSN: _____

Title: Contract Specialist Date: 25 March 2024

E-mail: [REDACTED]

Contracting Officer:

Typed Name: [REDACTED] DSN: _____

Date Reviewed: 25 March 2024 E-Mail: [REDACTED]

Technical Representative:

Typed Name: [REDACTED] DSN: _____

Title: Contracting Officer Representative Date: 25 March 2024

[REDACTED]

Requirements Representative:

Typed Name: [REDACTED] DSN: _____

Title: Acquisitions Analyst Date: 25 March 2024

Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Program Manager (1)

Typed Name: [REDACTED] DSN: _____

Signature: [REDACTED] Date: _____

Legal Counsel

Typed Name: [REDACTED] DSN: [REDACTED]

Signature: [REDACTED] Date: _____

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FEDERAL ACQUISITION REGULATION (FAR) PART 6
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1. **Contracting Agency:** The Department of the Army, Army Contracting Command-Redstone, ATTN: CCAM-LTB, Redstone Arsenal, Alabama 35898.

2. **Description of Action:** The Integrated Fires Mission Command – Ground Support Equipment (IFMC-GSE) requests approval to award a sole source follow-on contract for field maintenance and logistical support for the PATRIOT GETS-1000 program to [REDACTED]

[REDACTED] The intent is to award a hybrid contract comprised of [REDACTED]

3. **Description of Supplies/Services:** This effort provides field maintenance and logistical support required to maintain PATRIOT GETS-1000 automatic test equipment (ATE) systems, the antenna element test stations, power supply test stations, ancillary equipment and associated test hardware, software, and test accessories in operational condition. The base contract and yearly follow-on options include continental US (CONUS) support as well as mobile GETS and contingency deployment options for Korea, Europe, and Southwest Asia. Services, material, and travel are required to provide this support. Option exercise periods are one year.

The estimated period of performance for the base effort is from [REDACTED] to [REDACTED]. This requirement also includes four (4) additional option years. Estimated dollar amount for the base year is [REDACTED]. The estimated dollar amounts for the option years are as follows: \$ [REDACTED] for Option Year 1, \$ [REDACTED] for Option Year 2, [REDACTED] for Option Year 3, \$ [REDACTED] for Option Year 4. Total estimated contract value is \$ [REDACTED] with options. The IGCE amount with options amount is [REDACTED]. The estimated base and options are indicated in Table 1 below:

[REDACTED]

4. **Authority Cited:** The statutory authority permitting other than full and open competition is Title 10 U.S.C. Section 3204(a)(1) as implemented by Federal Acquisition Regulation (FAR) 6.302 – 1(a)(2)(iii) (A) and (B) entitled “Only one responsible source and no other supplies or services will satisfy agency requirements.”

5. **Reason for Authority Cited:** As described at FAR 6.302-1(a)(2), “When the supplies or services required by the agency are available only from one responsible source, or for the Department of Defense (DoD), National Aeronautics and Space Administration and the Coast Guard, from only one or a limited number of responsible sources, and no other types of supplies or services will satisfy agency requirements, full and open competition need not be provided for.”

a. The proposed source for this effort is [REDACTED] Leidos, a large business, is the only contractor with the technical expertise and resources needed to continue maintaining and upgrading the GETS-1000 and Test Power Set (TPS).

b. GETS is the standard US and Foreign Military Sales (FMS) depot test equipment required to maintain the PATRIOT missile system in an operational condition. This requirement for field maintenance and logistical support is a follow-on effort to Contract [REDACTED] Immediately upon contract award, the contractor will be required to provide US and international on-site service within 72 hours of a request for support.

c. This is a PATRIOT military-unique requirement and is not available in the commercial marketplace. Leidos is the only contractor with the technical expertise as well as the documentation needed for maintaining and upgrading this equipment. The GETS-1000 Programmable Interface Unit (PIU) is a General Electric proprietary design for which Leidos now owns all proprietary rights. The documentation contains a restricted legend limiting its use to the government verification and validation function. Access to all GETS data is required to perform the GETS-1000 support necessary to maintain PATRIOT circuit card test capability.

d. Based on economic and technical analysis, the cost to qualify a second source to promote a competitive procurement would require a minimum cost to the US Government of [REDACTED] to duplicate required Government Furnished Equipment (GFE) and provide training. In addition, the US Government would be required to purchase proprietary data rights from Leidos in order to compete this contract action.

Procurement of proprietary data rights would be required to promote competition because the GETS Programmable Interface Unit (PIU) is a proprietary General Electric design for which Leidos Innovations Corporation owns proprietary rights. These rights were held by Lockheed Martin Services until the transfer of its Information Systems and Global Services group (including the GETS 1000 program) to Leidos in 2016. The PIU controller is an assembly containing four proprietary VXI circuit cards for control and switching of the signal and measurement circuits. Access to PIU proprietary data is essential to produce and maintain the GETS system and TPS, and associated maintenance and technical assistance. Leidos is the only contractor with the technical expertise as well as the documentation needed to maintain and upgrade this equipment and developing TPS. The documentation contains a restricted legend limiting its use to the government verification and validation function only.

The [REDACTED] minimum duplication of cost includes procuring new test equipment, test accessories, ancillary equipment and TPS, training of TPS engineers, system software engineers and maintenance personnel, procuring tooling to manufacture TPS and other GETS-1000 unique hardware, developing a manufacturing data package and transferring manufacturing capability. These costs are not expected to be recovered over the remaining life of the system.

In addition, the time required to fabricate equipment and train a second source will delay required delivery of equipment by at least four years and will result in a break in in-country, on-site technical support by at least four years. Qualifying a second source will also require initiating a new sole-source US Government-funded contract action to fabricate additional test equipment and provide training for a second source. Once funds are available, developing and awarding a new contract may also delay funded, in-process, and pending US and FMS GETS equipment and services procurements by at least four years.

Procurement and delivery delays incurred in qualification of another contractor would have serious impacts on the US and international partners' ability to maintain PATRIOT weapon systems in operational condition. GETS equipment is PATRIOT-unique depot test equipment. Therefore, no other type of hardware can satisfy the Government's need.

This cost is not expected to be recovered over the remaining life of the system. In addition, diverting contractor resources necessary to train and furnish a second source with required equipment and training may delay GETS-1000 deliveries and services on

current US and FMS contracts up to 36 months.

e. Based upon the aforementioned, no other alternative can satisfy the Government's need. Disapproval of the J&A will result in delays in the ability to procure US field maintenance and logistical support required to maintain PATRIOT GETS-1000 ATE systems; the antenna element test stations; power supply test stations; ancillary equipment and associated test hardware; and software and test accessories in operational condition in CONUS as well as mobile GETS and contingency deployment support for OCONUS locations in Korea, Europe and Southwest Asia. A lapse in in this field maintenance and logistical support will impact GETS system maintenance and may significantly reduce PATRIOT operational readiness.

6. Efforts to Obtain Competition:

a. Effective competition. The reasons cited in paragraph 5 preclude offers being solicited from contractors other than Leidos. Leidos is the only contractor with the technical knowledge and expertise needed to fulfill this requirement in a timely and cost-effective manner without duplication of cost to the Government that is not expected to be recovered through competition. In addition, a Request for Information (RFI)/Sources Sought for the proposed acquisition was published via SAM.gov in accordance with FAR 5.201 on 04 May 2023 for 15 business days. This effort will be synopsized via SAM.gov on or about April 2024.

b. Subcontracting Competition. The solicitation and resulting contract will include the clauses FAR 52.244-5, Competition in Subcontracting, FAR 52.219-8, Utilization of Small Business Concerns, and DFARS 252.219-7004, Small Business Subcontracting Plan (Test Program). Interested sources, including small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small, disadvantaged business, and women-owned small business concerns which are identified through the synopsis will receive due consideration as required by law. Applicable clauses pertaining to subcontracting will be included in any resultant contracts.

7. Actions to Increase Competition: For reasons cited in paragraph five, there is no alternate qualified source that can provide the GETS-1000 program requirements. Any duplication of effort would result in an increase in overall program costs and is not expected to be recovered through competition. A business case analysis has shown that development of another qualified source for this procurement would not be cost effective at this point in the PATRIOT system life cycle. All appropriate small business and subcontracting clauses will be incorporated into the resulting contract. Leidos is encouraged to compete subcontracts when it is reasonable to expect that competition is feasible and will produce equal or better performance with components at lower prices. Leidos is also required to submit and adhere to an approved small business subcontracting plan.

8. **Market Research:** Market research, in accordance with (IAW) FAR Part 10, for the GETS-1000 program requirements, was conducted on or about July 2023. This is a military-unique requirement for US and FMS customers and is not available in the commercial marketplace. No non-developmental items or commercial equivalents exist for the equipment and associated maintenance and support services. In addition, Lockheed Martin owns proprietary rights to the GETS-1000 design and access to this data is essential for maintenance and logistical support of fielded equipment. The cost and delays incurred in qualification of another contractor would have a serious impact on the US and FMS customers' ability to maintain PATRIOT missile systems in operational condition. In addition, diverting contractor resources necessary to train and furnish a second source with required equipment would delay deliveries and services on current US and FMS contracts. Federal Acquisition Regulation (FAR) Part 12 will not meet the needs of this requirement and will not be utilized.

9. **Interested Sources:** A Request for Information notice required by FAR 5.201 was published in SAM.gov on 04 May 2023. A response from Leidos, Inc. was received on 16 May 2023. A response from Lockheed Martin was received on 18 May 2023. However, based on Lockheed Martin's response, the following requirements identified in the RFI cannot be met:

a. Procurement of proprietary data rights would be required by Lockheed Martin because the GETS Programmable Interface Unit (PIU) is a proprietary General Electric design for which Leidos Innovations Corporation owns the proprietary rights.

b. While Lockheed Martin is highly qualified in performing maintenance and logistical support for Navy and Air Force ATE, no current or recent GETS ATE maintenance and technical expertise was identified. The subject matter expertise required to operate and maintain the GETS-1000 is unique from other military ATE systems, and Lockheed Martin did not address how this knowledge will be acquired and validated prior to the beginning of the contract.

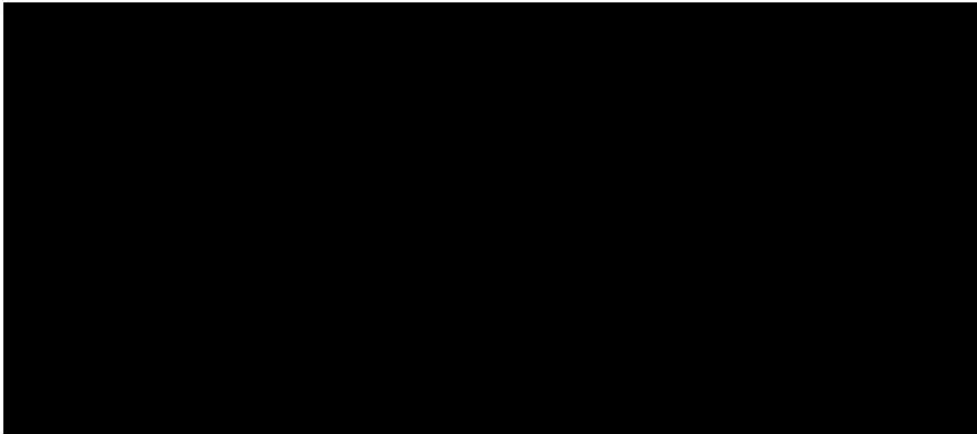
c. The RFI response does not mention a need for GFE. On-site GETS test stations, spare instruments, and other commercial and noncommercial GETS-specific equipment is essential to a contractor's ability to provide the timely troubleshooting, validation, and resolution of reported test station and associated equipment failures necessary to meet the [REDACTED] operational capability requirement.

d. Excess GETS-specific GFE is not available to provide to a second contractor while also meeting other current US and FMS GETS contract obligations. New contract vehicles and additional USG funding will be required to provide an initial duplicate set of GETS equipment, as well as to provide continuous upgrades and changes to GETS ATE GFE components and technical data. For this reason, it does not appear that Lockheed Martin will be able to meet a January 2025 contract start date.

To date, no other sources have written to express an interest.

10. Other facts:

a. GETS-1000 Program Procurement History:



b. The above contracts were not competed pursuant to the provisions of 10 U.S.C. 2304(c)(1), as implemented by FAR 6.302-1, "Only one responsible source, and no other supplies or services will satisfy agency requirements".

c. Contract [REDACTED] was awarded on 30 December 2014 and contract [REDACTED] was awarded on 30 June 2015, both on a sole source basis to Lockheed Martin Missiles Corporation (LMMC). LMMC, Leidos Holdings, Inc and certain of their subsidiaries consummated the merger of the former Lockheed Martin Information Systems & Global Solutions business segment with Leidos (the "Transaction") on 16 August 2016. As part of the Transaction LMMC submitted a novation package to DCMA on August 26, 2016. During the period prior to the formal novation, all work on contracts [REDACTED] was being performed by Leidos, as a subcontractor. On 5 December 2016, in accordance with FAR 42.1203 the Government approved the Novation Agreement. The Government recognizes Leidos Innovations Corporation as the successor in interest of Lockheed Martin Corporation. As a result, Leidos Innovations became entitled to all rights and titles of interest of LMMC for contracts [REDACTED]

d. The actions to increase competition stated in the J&A prepared to support the immediate prior acquisition are the same as included in this J&A resulting in no source change.

e. There was no prior award accomplished by full and open competition.

f. There are no unusual patterns revealed by history.

g. Acquisition Data Availability – Costs associated with developing a technical data package and acquiring spare equipment are not expected to be recovered over the remaining life of the system. Actions taken are discussed in Paragraph 7 above.

h. Subcontracting Opportunities - Solicitation and resulting contract will include the clauses of FAR 52.244-5 (Competition in Subcontracting) and DFARS 252.219-7004 (Small Business Subcontracting Plan – Test Program). The contractor will be urged to compete subcontracts with Small Disadvantaged Business companies, Historically Black Colleges and Universities, and Minority Institutions where feasible.

11. Technical and Requirements Certification - I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Name: _____ Date: _____

Title: _____ Signature: _____

12. Fair and Reasonable Cost Determination - I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable. The basis for this determination will be an Independent Government Estimate and cost analysis of similar procurements. To ensure that all costs are fair and reasonable, submission of certified cost and pricing data will be required from the contractor and an in-depth cost analysis will be performed as an additional step.

Name: _____ Date: 25 March 2024

Title: Contracting Officer Signature: _____

13. Procuring Contracting Officer Certification - I certify that this Justification is accurate and complete to the best of my knowledge and belief.

Name: _____ Date: 25 March 2024

Title: Contracting Officer Signature: _____

APPROVAL

Based upon the foregoing justification, I hereby approve a justification for the procurement of field maintenance and logistical support required to maintain Phased-Array Tracking to Intercept of Target (PATRIOT) General-Purpose Electronic Test Station (GETS)-1000 Automatic Test Equipment (ATE) systems, the antenna element test stations, power supply test stations, ancillary equipment and associated test hardware, software and test accessories from [REDACTED]

[REDACTED] pursuant to the authority of 10 United States Code (U.S.C.) 3204 (a)(1), as implemented by Federal Acquisition Regulation (FAR) 6.302-1(a)(2)(iii) (A) and (B) entitled, "Only one responsible source and no other supplies or services will satisfy agency requirements", subject to the availability of funds, and provided that the services and property described herein have otherwise been authorized for acquisition. The estimated period of performance for the base effort is from 09 February 2025 to 08 February 2026. This requirement also includes four (4) additional option years. The total estimated dollar value of this procurement is [REDACTED]

Signature: [REDACTED] Date: _____

Typed Name: [REDACTED] Title: Advocate for Competition